DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

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Limited Duty

Light Duty

LIMITED DUTY

I. PURPOSE

The purpose of this General Order is to establish a limited duty policy for those employees on disability leave due to an on-duty injury/illness/condition or on extended sick leave due to an off-duty injury/illness/condition. Although a limited duty policy may cause the Department to make staffing adjustments, it is felt that in most cases, limited duty is therapeutic and can speed an employee's recovery. It allows an employee to maintain basic skills and/or learn new skills and enables the Department to utilize an employee in a useful role during convalescence.

II. POLICY

Every effort will be made to return employees to the workplace as soon as they are medically released. The Human Resources Manager will coordinate the employee's return to work with the Chief of Police. Modified duty may be offered if an actual work assignment exists within the City which also meets the abilities documented by the City's physician.

An employee's modified duty work assignment will be terminated when:

- the employee is found performing beyond the modified duty restrictions;
- the work assignment is completed;
- budgetary constraints do not allow continuation of the position;
- the employee performs unsatisfactorily in the position;
- the employee does not follow the prescribed treatment and/or follow up doctor appointments as required to attempt to return to regular duty.

III. PROCEDURE

A. A limited duty assignment shall be considered temporary and shall not extend past the time frames set forth in the order, unless so designated by the Chief of Police.

B. If commissioned employees are placed on limited duty status, they will continue to wear the Department uniform unless otherwise directed by the Chief of Police.

1. Unless physically unable to do so, officers restricted to civilian attire shall be permitted to carry their authorized weapon(s) and Department-issued badge, concealed, both on and off duty.

2. No employee so authorized shall initiate any police action unless a life-threatening situation exists and no reasonable alternative course of action exists.

D. Employees may not work secondary employment while on limited duty.

E. Requests for limited duty may be initiated by the employee on disability or extended sick leave. If an employee does not request a limited duty assignment after being evaluated as being capable of such duty by the City's physician, the employee may be assigned by the Chief of Police to a limited duty assignment as deemed necessary and appropriate.

F. Request for Limited Duty Assignment

Employees who are requesting limited duty status shall have the City's physician submit a written statement authorizing limited duty. The employee will request the physician to indicate if the illness or injury will interfere with the wearing of the uniform and/or the safe operation of a firearm. The physician's written statement and a memorandum requesting a limited duty assignment shall be forwarded through the chain of command to the Chief of Police, who may authorize a limited duty assignment, and if the uniform shall be worn or if the employee shall be authorized to continue carrying a firearm.

G. Limited Duty Assignments

1. The employee will be expected to return to work immediately upon written release from the City's physician. If the previous position is not available, the Chief of Police may work with the physician to return the employee to another position that the physician approves. Reasonable accommodations will be made for a partially disabled employee. Every reasonable effort will be made to keep the injured or ill employee's job open during the approved leave, but the job is not guaranteed.

2. If necessary, the Chief of Police may attempt to locate a "light duty" position in the same or another department for the employee. Granting light duty is at the sole discretion of the City.

3. An employee on light duty assignment will return to the City's physician on a schedule determined by the physician for evaluation for return to regular duty.

4. An employee who objects to the return-to-work program recommended by the

physician/Chief of Police team may appeal to the City Manager for consideration of a different assignment. An employee who refuses to cooperate with the prescribed return-to-work or light duty program at that point may be subject to disciplinary action up to and including termination.

H. Employees Returning to Full-Duty Status.

1. Prior to returning to full-duty status, employees shall provide to the Chief of Police a completed form #OPD – F1125, "Duty Assignment Evaluation", from the City's physician indicating that they have recovered from their illness/injury/condition and are capable of performing all the duties of their permanent duty position.

2. Employees that have been on light/limited duty or extended sick/family leave for more than 45 days will, at the discretion of the Chief of Police, be required to perform an assessment to determine the employee's physical abilities to perform the essential job functions. This will be at the Department's expense.

3. Employees that are unable to satisfactorily complete the assessment of physical abilities may consult the City's physician to obtain a suggested program which may assist them in satisfactorily completing the assessment.

4. Employees that are unable to satisfactorily complete the assessment of physical abilities may be subject to employment action, including termination from the Department.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
Effective Date: 06/16/2009
Revised: 4/4/2011
Revised: 7/22/2016
Revised: 7/24/2020
Revised: 12/14/2020
Revised: 11/7/2023
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